

LAW AND MOTION TENTATIVE RULINGS

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Lam in 2025. Since King was not involved in that 2025 transaction (which is the subject of the King cross-complaint), Lam's proposed cross-complaint is based on a transaction or occurrence which is unrelated to the 2025 transaction. Therefore, the proposed cross-complaint is not compulsory and is instead permissive. (§ 428.50.) Permission to file a permissive cross-complaint is solely within the trial court's discretion. (*Crocker National Bank v. Emerald, supra*, 221 Cal.App.3d at p. 864.)

Plaintiff asserts that the Lam Property has an easement over the King Property because Lam's predecessors in interest acquired such easement and that such easement passed down through the chain of title to him. He therefore alleges that King has committed fraud against him by stating that there is no easement for the benefit of the Lam Property over the King Property. This is insufficient to support any claim for fraud since he has failed to plead any scienter by King; plaintiff acknowledges that he and King had no contact until he sued King in this action. Further, to the extent plaintiff seeks to base his fraud claims on statements made by King in the *Farkas* case or in King's cross-complaint, he is precluded from doing so pursuant to the litigation privilege. (Civil Code § 47, subd. (b).)

No. 26CV00542

TURNER v. GOLDEN STATE ORTHOPEDICS, et al.

DEFENDANTS CHRISTIAN S. HEYWOOD, M.D., GOLDEN STATE ORTHOPEDICS & SPINE, AND ORTHONORCAL INC.'S DEMURRER AND MOTION TO STRIKE FIRST AMENDED COMPLAINT

The demurrer is sustained with leave to amend. Plaintiff may file a second amended complaint, no later than August 21, 2026, that fully complies with Code of Civil Procedure section 425.10, subdivision (a)(1), and related Rules of Court. Based on this ruling, the motion to strike is denied as moot.

Plaintiff David Turner filed his 68-page first amended complaint for medical malpractice on April 17, 2026. While it is nearly impossible to deduce what the basis of his suit is, it appears that Dr. Heywood treated plaintiff's shoulder in 2024-2026 following a surgery by another doctor sometime in 2014 or 2016. Plaintiff also blames doctors at Doctors On Duty for failure to prescribe various modalities and treatment.

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power*

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(2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at 747.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) “A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably* respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her.” (Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2025) § 7:85 (emphasis in original).) “The objection of uncertainty does not go to the failure to allege sufficient facts.” (*Brea v. McGlashan* (1934) 3 Cal.App.2d 454, 459.) “It goes to the doubt as to what the pleader means by the facts alleged.” (*Ibid.*) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (*People v. Lim* (1941) 18 Cal.2d 872, 882.)

Where the complaint prevents a party from reasonably determining what issues must be admitted or denied, or what counts are alleged against it, a demurrer for uncertainty can be sustained. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616; *Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

Plaintiff’s status as self-represented does not provide a basis for preferential treatment. (*Stover v. Bruntz* (2017) 12 Cal.App.5th 19, 31.) “When a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys.” (*Nelson v. Gaunt* (1981) 125 Cal.App.3d 623, 638.) This means that plaintiff is “held to the same restrictive rules of procedure as an attorney.” (*Id.* at 638-639; *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) “[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation....” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985, citation omitted.)

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The Court agrees that plaintiff's first amended complaint is fatally uncertain. First, it is not clear which defendants are named for which of the two causes of action. Second, the allegations as a whole are set out in a rambling, incoherent manner; should plaintiff amend he must state his contentions in ordinary and concise language. A complaint must, among other things, contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a).) For example, plaintiff lists in exhaustive detail what appears to be snippets from his own medical records and indecipherable medical jargon – such detail confuses the issue of what procedure and what medical practitioner is allegedly responsible for plaintiff's harm. It is not even clear when the medical treatment was provided.

Plaintiff is cautioned that any amendment must be concise and clearly describe the treatment at issue, who provided that treatment, and when. Plaintiff is also reminded that responsive papers must be filed within the deadlines prescribed by the Rules of Court and served on all parties to the action (his oppositions to the motion were filed one court day late and he failed to serve them).

No. 23CV01548

CHEPOURKOVA v. CHEPOURKOVA

**MOTION FOR INTERLOCUTORY JUDGMENT OF PARTITION AND
APPOINTMENT OF REFEREE**

The parties shall appear to determine if they can reach an agreement/stipulation to proceed with an interlocutory judgment on the papers presented, or agree to a sale price for Anna's purchase. Since the statutory scheme allowing interlocutory judgments requires either a trial or dispositive motion, and none has yet occurred here, the current motion does not support the granting of an interlocutory judgment.

I. INTRODUCTION/BACKGROUND

The parties' declarations provide the following facts:

Plaintiff Tatiana Chepourkova ("Tatiana") and defendant Anna Chepourkova ("Anna") are sisters and each own an undivided 50% interest as tenants in common in an undeveloped, unoccupied parcel in Santa Cruz County (APN 097-111-08). Both parties are self-represented. Tatiana anticipates that Anna will make claims for reimbursement and/or contribution, which Tatiana will dispute. Tatiana seeks the appointment of a referee and sale of the property.